

ARGUING TO WIN: THE FLORIDA VOTE RECOUNT

Debian Marty

It's all over but the shouting heads. (Rob Morse)

In "Analysis: War Leaves Its Questions," four Washington Post staff writers conclude that the Florida vote recount and its contentious presidential outcome produced several challenges to our democracy. The reporters express concern over how we might fix faulty voting machines, improve voter education, ensure fair election oversight, and most fundamentally, determine what constitutes a vote (Balz, Von Drehle, Schmidt, & Suro, 2001). The need for these remedies is without dispute. Yet, what about the "war" itself? Why characterize a peacefully contested transition of power as a "war"? Moreover, how will we address the wounds inflicted by the way this "war" was won?

While the media bear some responsibility for this depiction, they are but one major contributor to the "argument culture." Deborah Tannen describes the argument culture as a "pervasive warlike atmosphere that makes us approach public dialogue, and just about anything we need to accomplish, as if it were a fight" (1998, p.3). When any of us relate to disputes combatively, we contribute to this divisive argument culture. But when the nation's leadership argues to win, they impose an ineffective and unethical communicative standard on our public deliberations and decision making. Bob Greene (2000), a Chicago Tribune columnist writing in the election's aftermath, explains. "In our current culture," he writes, "the temptation is to fragment ourselves into angry camps, charging that one side (the side with which we agree) is full of justice and intelligence, while the other (the side with which we disagree) is driven only by politics and cynicism." This argumentative mode diminishes public deliberations, for it polarizes the public and undermines the integrity of our democratic processes.

Indeed, the political fray during the Florida vote recount was extremely disheartening, for it left the general public believing that politics and cynicism motivated *all* the recount

Debian Marty (Ph.D. Ohio State) is an Assistant Professor with the Institute for Human Communication, California State University, Monterey Bay.

The author would like to thank Brian McGee, Michelle Holling, and Josina Makau for their critical and kind responses to earlier drafts of this essay.

participants—the politicians, their supporters, the media, and even the judiciary. Colin Campbell (2000) summarized this sentiment, saying, “This election has provided powerful support for the queasy argument that practically everything is politics; that power and interest are all; that judges and candidates and analysts are incapable of disinterested standards” (p. C1). Even so, he warns, the argument culture’s full impact on our democracy did not materialize. “We were lucky this time,” writes Campbell. “Imagine this election’s awkward drama playing out against a backdrop of recession, unemployment, inflation, war or preparation for war, civil unrest or extremist ideologies? An aggravating and exhausting election could turn really mean” (p. C1).

Although the angry camps didn’t spill violently out into the streets, the acrimony has. Columnists across the country implored us to restore civility. From the East Coast, Suzanne Cassidy (2000) writes, “I assume that most of us, no matter what our politics, want our children to grow up knowing that people can debate without hating each other” (p. I1). Jane Ely’s (2000) Texas commentary was titled, “Taking Sides Shouldn’t Mean Being Mean.” And Rob Morse (2000) reported on talk in San Francisco’s coffee shops, saying, “We spoke of a missing sense of civility in politics, and lack of loyalty on either side to the higher interests of the nation and our system of government” (p. A17).

The call for civility even became the cornerstone of President Bush’s inaugural address. The president’s appeal, however, succumbed to skepticism across the political spectrum. Robert Reich (2001), the Secretary of Labor under President Clinton, wrote, “George W. Bush might sincerely want to ‘reach out’ to congressional Democrats, but the Democrats don’t want to reach back” (p. B5). Conservative columnist Cal Thomas (2001) was even more blunt. “Perhaps Bush will kill Democrats with kindness, softening them up so much that they will roll over and play dead. Or, more likely, they might use Bush’s civility as a weapon against him” (p. B7). Civility is a liability, continues Thomas. “For politicians,” he asserts, “power is the trophy, not people praising your manners” (p. B7).

Arguing To Win

The “war” over Florida has left us with much to consider about the way we argue and the ways in which we theorize and teach argumentation. Our professional reflection is warranted, suggest Carol Winkler and David Cheshier (2000), because argumentation pedagogy “serves a critical function, both inside and outside the academy,” in large part because it prepares those who become “active contributors within society’s political, legal,

educational, and business contexts” (p. 101). Winkler and Cheshier’s assertion is borne out in the Florida vote recount, for most of the participants—the candidates, their political and legal staff, the judiciary, the analysts, and the media—have college degrees, and most likely graduate or professional training. Therefore, argumentation theorists and teachers have input into the present and future quality of national deliberation and debate.

A critical reappraisal of our approach to argumentation is vital too because the partisan focus on winning substantively harmed public deliberation during the Florida vote recount. In fact, the high profile of these excesses provides us an opportunity to call attention to problematic argumentation practices and to promote alternatives. Some might suggest that such reflection is misplaced, that Florida’s vote recount problems are simply violations of sound argumentative standards. On behalf of this view, they can point to long-standing safeguards, such as the prohibitions against *ad hominem* attacks and appeals to prejudice. They also may reassert that successful argumentation relies on good reasons and on-point refutation. These safeguards notwithstanding, we still may be held accountable.

Many theorists, like Tannen (1998) above, have been criticizing argumentation’s winner-take-all standard of success. Pat Gerhke (1998), for example, documents the effects of this zero-sum approach on deliberation and debate. In his recent analysis of the state of argumentation pedagogy, Gerhke finds four “disturbing” premises evident in our field’s basic argumentation texts and pedagogy literature. “First,” he writes,

argumentation texts favor a particular logical model of reasoning: a Western linear mode of logic. Second, there is an implicit assumption of the need to know the truth before engaging in argument. Third, these texts approach argumentation and debate from an oppositional model. Fourth, and perhaps most disturbing, the critical tools of argumentation are depicted as ways to assess others’ reasoning and rarely one’s own. (p. 77)

These four premises, I maintain, emanate from and contribute to a hyper-competitive, radically individualistic argument culture. In my exploration of the Florida vote recount, I attempt to demonstrate how these basic assumptions about argumentation helped to produce divisiveness and cynicism about the presidential election, judicial integrity, and democracy itself.

The premise that is most evident in the Florida vote recount process is oppositionality, the assumption that disputants must pit themselves against each other in order to win an argument. This adversarial orientation, whether in elections or in argumentation, sacrifices

reasoned disagreement and relationships to the “raw hunger to win” (Friedman, 2001, December 1). In electoral politics, this winner-take-all approach permits a candidate with the highest percentage of the vote—sometimes not even 50 percent—to secure one hundred percent of the power. Before the conclusion of the last presidential election, Lani Guinier (2000) explained the process. She wrote, “The presidency rests on a handful of votes in Florida because allocation of electoral votes is winner-take-all—if Gore wins by ten votes out of 6 million, he will win 100 percent of the state’s twenty-five electoral votes. The ballots cast for a losing candidate are always “invalid” for the purposes of representation; only those cast for the winner actually “count.” The winner-take-all approach denies voters equal representation in the political sphere; it also jeopardizes equitable relationships in the community. Not only do those painted as “Sore Loserman” supporters feel disenfranchised; such disrespect may undermine any later attempts at compromise or bipartisanship.

The truth may be a “loser” too. Even if we accept the conventional premise that disputants know the truth before engaging in argument, our confidence in its integrity was challenged in Florida. The most prominent instance was the “reversal factor” in the presidential election. Clarence Page (2000), among many others, wondered what Bush and Gore’s supporters would be saying if their candidate’s election status were reversed. He wrote, “Would we then be hearing the Bush folks in Florida insisting on a ‘thorough and fair hand count’ of every vote in the state while the Gore people would be whining about the need for ‘closure’ and the charge that Bush was trying to ‘steal’ the election ‘from us’” (p. 14A; see also Campbell, 2000). David Broder (2000), too, maintained that the presidential candidates “have failed the nation in important ways.” He explained,

The most important is in truth-telling. From the beginning, Gore has insisted that his only purpose is to get every vote counted... [But] everyone knows [Gore and Lieberman’s] pursuit of additional votes in three heavily Democratic counties in south Florida is motivated by a belief that they can overturn Bush’s margin. On Bush’s side, his impatience has shown in his repeated claims that the election was over, even while permissible legal challenges remain unsettled. He was criticized—and properly—for staging an Oval Office scene down in Texas, where he and his vice presidential choice, Richard Cheney, began transition talks barely a day into the automatic recount of Florida votes. (p. B5)

Consequently, two types of harm to the conventional presumption of truth may be encouraged in competitive argumentation. First, the adversarial emphasis on winning may

sacrifice the truth in favor of a potentially triumphant strategy. Marc Sandalow (2000) describes this strategic “devotion to power” in politics. “Each side,” he observes, “lines up to make its arguments not because it truly believes them, but because they advance its position” (p. A14). This manipulation of truth in the service of winning is a pivotal source of cynicism in contemporary politics.

A commitment to partisanship over principle diminishes the truth in a second way, also supported by argumentation pedagogy. Assuming that disputants need to know the truth before engaging in an argument creates a disincentive toward listening and understanding those with whom we disagree. “The claims advanced by the other side,” write Irwin Mallin and Karen Vasby Anderson (2000), “are thus not viewed as potentially legitimate concerns that deserve to be addressed but as statements that must be defeated, by showing them to be fallacious, false, or irrelevant” (p. 127).

This tendency to disregard others and the quality of our relationships, claims Richard Cohen (2000), manifested in the vote recount process as the “Doctrine of Tough Noogies.” This schoolyard ethic, he claims, informed Florida’s election certification officials’ negative response to the unsuccessful efforts of various counties to recount their votes in accordance with the State Supreme Court’s new deadline. Cohen protests the officials’ decision to uphold the deadline regardless, saying that the certification process is “only over by proclamation, by assertion—the imposition of the Tough Noogies principle where it does not belong” (p. A27).

Whether we agree with Cohen’s analysis of this particular instance, his point remains viable. An assumption that disputants know the truth prior to arguing damages the communicative process. Why listen when you already know that you are right? Combine this high degree of confidence with an adversarial regard for those with whom one disagrees, and we risk arrogant dismissals such as those issued by some Republicans demanding that Democrats simply “Get over it” (Dionne, 2001, January 28). The victor’s contempt for cooperation—witness Charles Krauthammer’s (2000) warning to President Bush: “The instrument of emasculation is ‘bipartisanship’”—also may legitimate the politics of personal destruction. “Truths” arrived at through such adversarial, separatist means harm reasoning and relationships. They further barricade themselves from challenge by an insistence on Western rational logic as the “coin of the realm.”

Logic is an argumentative necessity; indeed, this essay relies upon it. Yet this third pillar of argumentation pedagogy supports an unnecessarily limited way of knowing. Not

only does rationality deny other cultural logics; it also demeans emotion as a viable argumentative resource. Yet, even on its own terms, logic is problematic. Take, for example, the way in which logic unquestioningly serves its premises. If we change the major premise from “all men are mortal,” to “all free men are mortal” then the truth of whether Socrates is mortal depends on his legal status. The survival and even the humanity of many diverse groups—from African-American slaves to Jews in Nazi Germany to the Argentinean “disappeared”—has hinged on such logical equations. Cultural logics based on interdependence and the emotions inherent to empathy and compassion most likely would interrupt these dehumanizing rationalizations. Thus, other ways of knowing may merit a legitimate role in argumentation. The question, then, is not whether logic is necessary; rather, it is whether logic is sufficient.

The logical process actually helped to create some of the dispute surrounding the presidential election. Many commentators are reporting now that the second errant media call for Florida on election night crafted an unwarranted presumption for George W. Bush. Columnist E. J. Dionne Jr. (2001, February 16) writes, “Once Bush was declared president, the politics of the recount were tilted powerfully in Bush’s favor. Absent that call, there might have been a real and complete recount in Florida. Either Gore or Bush could have claimed the White House free from charges that the election had been ‘stolen.’” Presumptive reasoning, however, placed the burden of proof on Al Gore and, for many, logically produced a critique of his legal challenges. Michael Kelly (2000) for example, charged that if Gore “doesn’t get his way [with the recount] he threatens to delegitimize democracy itself” (p. 8).

As exemplified by the media mishaps of election night, presumptive reasoning (a staple of competitive argumentation) recreates any power inequities inherent in the status quo. Combine this reasoning process with any inherent power inequities, and we risk being led down the slippery slope between presumption and presumptuousness. For many observers, both the Florida State Supreme Court and the United States Supreme Court slid down this path. Critics of the State Supreme Court held that the 4-3 decision “to begin recounting without any prescribed standard” was the work of Democratic judges, “several of whom are notorious activists” (Thomasson, 2000, December 17, p. C2). For these critics, the Florida court used their power to enforce a partisan presumption rather than to reason through the recount’s complex legal issues.

Likewise, the U.S. Supreme Court's precipitative actions and ultimate decision in *Bush v. Gore* received widespread rebuke. Many critics cite Justice Scalia's explanation for staying the manual recount as a determining factor. "The counting of votes," opines Scalia, "that are of questionable legality does in my view threaten irreparable harm to [George W. Bush], and to the country, by casting a cloud upon what he claims to be the legitimacy of his election" (Schultz, 2000). The critics conclude that by granting Bush's partisan presumption, Justice Scalia already had determined the election's outcome. The court's critics suspect that Scalia, along with the other justices in the majority, simply sought a legal rationale for a foregone conclusion. This suspicion is bolstered by Justice Steven's oft-quoted dissent. "Although we may never know with complete certainty the identity of the winner of this year's presidential election," he declares, "the identity of the loser is perfectly clear. It is the nation's confidence in the judge as an impartial guardian of the rule of law" (Phillips, 2000).

The controversy surrounding the courts provides a cautionary tale for argumentation theorists and teachers alike. In the closed system of adversarial truths, logic is vulnerable to self-serving manipulations and self-fulfilling conclusions. As argumentation theorist Douglas Walton explains, "Presumptions are very useful and even necessary in thinking and inquiry, even though they can be problematic. The problematic part arises," he continues, where a defensible presumption is taken in an absolute way" (1999, p. 17).

One thing is certain. There's a great deal of anger over the courts' apparently political decisions. The U. S. Supreme Court engenders most of the outrage. David Abel (2001) reports that "660 professors from about half the nation's law schools denounced the court's majority in an advertisement in The New York Times. They excoriated the justices for ignoring the facts and acting as 'political proponents for candidate Bush, not as judges'" (p. 15). Numerous commentators also denounced the court's apparent partisanship, calling for Rehnquist's resignation and even labeling the court's majority "treasonous criminals" (e.g., Bugliosi, 2001; Friedman, 2000, December 16; Goodman, 2000; Kennedy, 2001; Schonsheck, 2001). Of the decision in *Bush v. Gore*, Evan Schultz (2000) concludes, "Just like the ballot counting, we'll never trust the result."

Presumptuousness. Anger. Trust. Logic-based argumentation provides little opportunity to attend to the emotional dimensions of our disputes. Instead, a logical argument privileges convictions over relationships, as it values being right over getting along. Yet, as Mallin and Anderson (2000) note, "the conflict [resolution] literature tells us that dealing with emotions

is as important as the substantive discussion of interests" (p. 127). Moreover, they state, "in arguments where the parties are in an ongoing relationship, overemphasis on winning is a poor strategy" (p. 128).

The challenge is apparent in the current political climate. Former Vice Presidential candidate Joseph Lieberman recently acknowledged that "It would be easy to continue to be angry about the way last year's election was decided," but urged Democrats to focus on serving "the millions of hard-working families for whom we waged that campaign" ("Lieberman urges Dems," 2001). His view contrasts with Terry McAuliffe's, the new head of the Democratic National Committee. Just a few days earlier, McAuliffe announced that he was using "'the anger and resentment' over Florida to energize the party's base for the next two elections" (Thomasson, 2001, February 6, p. A8). The Congressional Black Caucus and African-American leaders are utilizing their anger too, as evidenced by NAACP's Julian Bond's post-Florida question, "How can anger be turned into action?" (Dionne, 2001, January 28; see also Page, 2001). Whatever one thinks of the Florida vote recount, an argument that does not seriously engage the affective dimensions of a dispute ends up winning a most Pyrrhic victory.

The phrase, "feelings are facts," is a truism in the conflict resolution field. This assertion recognizes the prominent role that emotion plays in disagreements, whether it is acknowledged or not. While willful ignorance of our feelings may obstruct the resolution of differences, demeaning emotion as "irrational," or worse, "hysterics," aggressively resists both potential resolution and the repair of our relationships. Emotion may be regarded instead as an argumentative resource, in several ways. First, emotion often signals the degree of controversy and thus alerts disputants to the seriousness of the argument. Constructive emotion also acts as a link between disputants, overcoming the cold calculus of logic and tempering potential abuses of power. Furthermore, if emotions are cultivated critically,¹ they facilitate responsiveness to differing points of view, helping us maintain an open mind through care. Critical emotions also set protective limits against harm as they animate responsibility toward the relationships affected by the deliberation and decision making processes.

¹ See Makau and Marty (2001) for an extended discussion of the role of critical emotions—including compassion, empathy, and anger—in producing and evaluating arguments (pp. 48-52, 244-245).

We can utilize our emotions fully within an ethic of interdependence--where we recognize our mutual reliance--rather than in a competitive, individualistic context. The latter's disregard for relational responsibilities brings us to the last conventional premise, where the critical tools of argumentation are depicted as ways to assess others' reasoning and rarely our own. This lack of self-reflexivity is lamentable in any argumentative context. It is particularly onerous, however, in contexts that involve multiple standpoints and power disparities. In these situations, the lack of self-reflexivity often rests defensively on hegemonic presumptions and the power to silence dissent.

It may well be that in virtually every argumentative context, "any point of view is too small for the whole truth" (Levine, 1997, p. 82). If we acknowledge that every perspective is partial and that we necessarily depend on other points of view to understand a dispute fully, we might be motivated to critically reflect on our views and values. Were we to do so, we could experience a higher degree of confidence in our own convictions. If we critically examine our own views and values, we either would strengthen or modify them. In this way, critical self-reflexivity supports a win-win approach to argumentation through stronger, more accurate, more responsive reasoning and position taking.

Yet, the winner-take-all rewards promised by the adversarial, logic-based, separatist truths of contemporary argumentation mitigate against such self-reflexivity. And so we come full circle to Bob Greene (2000), whose comments on the lessons we might learn from the Florida vote recount opened this essay. In the current argument culture, he maintains that "the people who get ahead—in politics, in business, in sports, in opinion writing and broadcasting—are those who behave as if they never have a single doubt that they are 100 percent correct." To maintain this unilateral stance, "successful" people must take for granted a positive self-presentation ("the side with which we agree is full of justice and intelligence"), as they assume a negative other-presentation ("the side with which we disagree is driven only by politics and cynicism"). This lack of self-reflexivity presents obvious dangers for argumentation, Greene concludes, for

Life is complicated. Life has gradations and shadings. There are many questions—even most questions—to which there is no right answer or wrong answer. We all become so angry at each other so easily—maybe this is because we're working under the wrong assumption. Maybe it's because each of us is always so ready to say: I'm right. Without considering that this severely limits the way we look at the world we all share.

Conclusion

The contentious fallout from the Florida vote recount may inspire argumentation theorists and teachers to reflect critically on our own assumptions and practices. Concrete proposals already exist for us to consider. David E. Williams and Brian R. McGee's (2000) recent essay outlines how to incorporate a unit on negotiation into our argumentation classes. Such reform, they suggest, could balance the "competitive element of debate instruction" with "the need to foster competencies in cooperation, compromise and consensus building" (p. 105). Likewise, Marvin T. Brown's (1999) workbook on "argumentative dialogue" strives to bring together good reasons with good relationships. Most recently, Josina Makau and I (Makau & Marty, 2001) co-authored *Cooperative Argumentation: A Model for Deliberative Community*, which seeks to build on and reformulate traditional argumentative skills within an ethic of interdependence. These and other innovations might resolve the argument culture's "war" by waging peaceful deliberation and debate.

References

- Abel, D. (2001, February 3). Bush v. Gore case compels scholars to alter courses at US law schools [Electronic version]. Boston Globe.
- Balz, D., Von Drehle, D., Schmidt, S., & Suro, R. (2001, February 4). Analysis: A war leaves its questions. *The Washington Post*, p. A01.
- Broder, D. S. (2000, November 28). Gore, Bush fail in truth-telling. *The Monterey County Herald*, p. B5.
- Brown, M. T. (1999). *The ethical process: An approach to controversial issues*, 2nd ed. Upper Saddle River, N.J.: Prentice Hall.
- Bugliosi, V. (2001, February 5). None dare call it treason [Electronic version]. *The Nation*.
- Campbell, C. (2000, December 14). Shame on us if this ever happens again: Decision 2000. *The Atlanta Journal-Constitution*, p. C1.
- Cassidy, S. (2000, December 17). Post-election civility: Kids need to see it. *The Patriot-News Harrisburg*, p. I01.
- Cohen, R. (2000, November 28). The doctrine of tough noogies. *The Washington Post*, p. A27.

- Dionne, E. J. (2001, January 28). We'll get over it if you get off your high horse [Electronic version]. *The Washington Post*.
- Dionne, E. J. (2001, February 16). The Billy Tauzin show [Electronic version]. *The Washington Post*.
- Ely, J. (2000, December 1). Taking sides shouldn't mean being mean [Electronic version]. *The Houston Chronicle*.
- Friedman, T. (2000, December 1). Candidates paint false picture. *The Monterey County Herald*, p. B5.
- Friedman, T. (2000, December 16). Gore takes a bullet for the country. *The Monterey County Herald*, p. B7.
- Gehrke, P. (1998). Teaching argumentation existentially: Argumentation pedagogy and theories of rhetoric as epistemic. *Argumentation and Advocacy: The Journal of the American Forensic Association*, 35, 76-86
- Goodman, E. (2000, December 14). Court ruling supremely partisan. *The Monterey County Herald*, p. B5.
- Greene, R. (2000, December 24). There actually is a lesson for us in all of this [Electronic version]. *Chicago Tribune*.
- Guinier, L. (2000, December 4). Making every vote count [Electronic version]. *The Nation*.
- Kelly, M. (2000, November 29). Gore will burn this village to save it [Electronic version]. *The Seattle Times*.
- Kennedy, R. (2001, January 1). Contempt of court. *American Prospect*, pp. 15-17.
- Krauthammer, C. (2000, December 22). Bipartisan blather [Electronic version]. *The Washington Post*.
- Levine, S. (1997). *A year to live*. New York: Bell Tower.
- Lieberman urges Dems to move on. (2001, February 14). *The Monterey County Herald*, p. A4.
- Makau, J. M., & Marty, D. L. (2001). *Cooperative argumentation: A model for deliberative community*. Prospect Heights, IL: Waveland.
- Mallin, I., & Anderson, K. V. (2000). Inviting constructive argument. *Argumentation and Advocacy: The Journal of the American Forensic Association*, 36, 120-133.
- Morse, R. (2000, December 11). Shenanigans continue without us. *The San Francisco Chronicle*, p. A17.

- Page, C. (2000, November 21). The slow, clunky system works. *The Monterey County Herald*, p. B5.
- Page, C. (2001, January 4). GOP can win black support. *Cincinnati Post*, p. 14A.
- Phillips, A. (2000, December 25). Victory at last [Electronic version]. *Maclean's*.
- Reich, R. B. (2001, January 3). Forget the political sweet talk. *The Monterey County Herald*, p. B5.
- Sandalow, M. (2000, December 17). Wars on the hill leave behind painful imprint for public. *The San Francisco Chronicle*, p. A14.
- Schonsheck, J. (2001, January 31). Supreme Court majority erred; Rehnquist should resign. *The Post-Standard*, p. A9.
- Schultz, E. P. (2000, December 29). Justice unrobed [Electronic version]. *Legal Times*.
- Tannen, D. (1998). *The argument culture: Moving from debate to dialogue*. New York: Random House.
- Thomas, C. (2001, February 7). Civility may backfire for Bush. *The Monterey County Herald*, p. B7.
- Thomasson, D. (2000, December 17). Stevens' stinging dissent only inflames situation. *Deseret News*, p. C02.
- Thomasson, D. (2001, February 6). McAuliffe shouts "fire!" *Cincinnati Post*, p. A8.
- Walton, D. (1999). *One-sided arguments: A dialectical analysis of bias*. Albany, N.Y.: SUNY.
- Williams, D. E., & McGee, B. R. (2000). Negotiating a change in the argumentation course: Teaching cooperative argument. *Argumentation and Advocacy: The Journal of the American Forensic Association*, 36, 105-119.
- Winkler, C. K., & Cheshier, D. M. (2000). Revisioning argumentation education for the new century: Millennial challenges. *Argumentation and Advocacy: The Journal of the American Forensic Association*, 36, 101-104.

Copyright of Contemporary Argumentation & Debate is the property of Cross Examination Debate Association and its content may not be copied or emailed to multiple sites or posted to a listserv without the copyright holder's express written permission. However, users may print, download, or email articles for individual use.